

25CHCV03967 25CHCV03967

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 25CHCV03967 Hearing Date: August 25, 2026 Dept: F47

Dept. F47

Date: 8/25/26

Case #25CHCV03967

MOTION TO SEAL

Motion filed on 4/14/26.

MOVING PARTY: Defendant The Santa Clarita Community
College District

RESPONDING PARTY: Plaintiff Dianne Van Hook

NOTICE: ok

RELIEF REQUESTED: An order sealing: (1) Exhibit A attached to the Declaration of Nikhil P. Pole in support of the District's Motion to Quash; and (2) portions of the Motion to Quash that quote or reference the exhibit. Exhibit A consists of pertinent portions of the deposition transcript of non-party, Sharlene Coleal. The parties have stipulated that this transcript is designated as "Confidential" pursuant to the protective order previously entered by this Court.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Dianne Van Hook's (Plaintiff) termination as Chancellor of the College of the Canyons/Santa Clarita Community College District (District).

After being placed on administrative leave by the District's Board of Trustees, Plaintiff resigned as Chancellor.

On 11/7/25, Plaintiff filed this action against the District and individual Board members, Sebastian Cazares, Joan MacGregor, Jerry Danielson, Edel Alonso and David Andrus (collectively, the Individual Defendants) alleging causes of action for: (1) Breach of Written Contract against the District, (2) Breach of the Implied Covenant of Good Faith and Fair Dealing against the District, (3) Wrongful Termination By Constructive Discharge against the District, (4) Wrongful Termination In Violation of Public Policy against the District, (5) Wrongful Termination – Age Discrimination (Government Code 12940(a)) against the District, (6) Wrongful Termination – Racial Discrimination (Government Code 12940(a)) against the District, (7) Hostile Work Environment (Government Code 12940(a)) against the District, (8) Aiding and Abetting Retaliation, Discrimination and Harassment (Government Code 12940(a)) against the Individual Defendants, (9) Violation of Due Process of Permanent Public Employee – (California Constitution, Article 1, Section 7) against all of the Defendants, (10) Retaliation - Government Code 12940(h)) against the District, (11) Failure to Provide Personnel File (Labor Code 1198.5) against the District, (12) Violation of the Tom Bane Civil Rights Act (Civil Code 52.1) against all Defendants, (13) Harassment against all Defendants, (14) Conversion against all Defendants except MacGregor and (15) Intentional Infliction of Emotional Distress against all Defendants.

On 1/29/26, Defendants filed and served a demurrer to the 8th, 9th, 12th, 13th, 14th and 15th causes of action and a motion to strike portions of the complaint. On 2/17/26, a Stipulation and Protective Order was entered in this case.

On 4/14/26, the District filed and served the instant motion seeking an order sealing: (1) Exhibit A attached to the Declaration of Nikhil P. Pole in support of the District's Motion to Quash; and (2) portions of the Motion to Quash that quote or reference the exhibit. Exhibit A consists of pertinent portions of the deposition transcript of non-party, Sharlene Coleal (Coleal). The parties have stipulated that this transcript is designated as "Confidential" pursuant to the

protective order previously entered by this Court.

On 6/25/26, the Court sustained Defendants' demurrer to the 8th, 9th, 12th, 13th, 14th and 15th causes of action with leave to amend. On 7/27/26, Plaintiff filed the First Amended Complaint alleging causes of action for: (1) Breach of Written Contract against the District, (2) Breach of the Implied Covenant of Good Faith and Fair Dealing against the District, (3) Wrongful Termination By Constructive Discharge against the District, (4) Wrongful Termination In Violation of Public Policy against the District, (5) Wrongful Termination – Age Discrimination (Government Code 12940(a)) against the District, (6) Wrongful Termination – Racial Discrimination (Government Code 12940(a)) against the District, (7) Hostile Work Environment (Government Code 12940(a)) against the District, (8) Aiding and Abetting Retaliation , Discrimination and Harassment (Government Code 12940(a)) against the Individual Defendants, (9) Violation of Due Process of Permanent Public Employee – (California Constitution, Article 1, Section 7) against all of the Defendants, (10) Retaliation - Government Code 12940(h)) against the District, (11) Failure to Provide Personnel File (Labor Code 1198.5) against the District, (12) Common Law Harassment against all Defendants, (13) Conversion against all Defendants except MacGregor and (14) Intentional Infliction of Emotional Distress against all Defendants.

No opposition or other response to the instant motion to seal has been filed.

ANALYSIS

The Stipulation and Protective Order in this case provides that “[w]here any Confidential Materials or Highly Confidential Materials, or Information derived therefrom, is included in any motion or other proceeding governed by California Rules of Court, Rules 2.550 and 2.551, the party shall follow those rules.” CRC 2.550(d) provides that “[t]he court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.”

Here, the deposition transcript of Coleal has been designated as "Confidential" by all parties. Coleal's deposition involved testimony regarding information gathered from "closed-door" sessions of the Board of Trustees for the District and such which information is not accessible to the public. See Government Code 54950 et seq. (the "Brown Act" which protects the confidentiality of closed-door Board meetings); (See also California Education Code and by the Family Educational Rights and Privacy Act (FERPA), which pertain to protect confidential information of the District's students and employees).

The District has shown that the protection provided by the foregoing statutes overrides any right of public access, and the goal of the statutes support sealing (i.e., keeping closed-door board meetings confidential). Without an order sealing the information, such information which is statutorily protected as confidential will be revealed to the public.

The Court finds that the request to seal narrowly tailored and there are no less restrictive means to achieve the overriding interest of the government protections.

CONCLUSION

The motion is granted.